

-
File No.: EXP202300542

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for the Protection of Data on January 3, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent is a neighbor of the claimant and is responsible for a camera located behind the window of her home, which faces outward, capable of capturing images of the claimant's property, without having authorization for this.”

She provides images of the camera's location and cadastral plans regarding the situation of both parties' properties (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on January 18, 2023, for her to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in a timely manner as evidenced by the acknowledgment of receipt in the file.

THIRD: On March 2, 2023, a document was received from the respondent confirming the presence of the cameras (4 in total) installed by the security company PROSEGUR, which focus on her property, with the reason for the installation being “the various damages caused by a neighbor” since 2013, which have been judged and reported on several occasions.

“As proof of what I say, I attach photographs of the area to which the cameras focus and a video of the last criminal act that consisted of pouring oil on my car.”

FOURTH: On April 3, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On July 13, 2023, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: Following the transfer of the Initiation Agreement in accordance with current regulations, a document dated August 17, 2023, was received from the legal representative of the respondent, stating the following in a timely manner:

“Regarding the points raised in the resolution that agrees to initiate the sanctioning procedure, first of all, the reasons are presented for which Ms. B.B.B. has contracted a security system or service.

For quite some time, the claimant Mr. A.A.A. has been a neighbor of Ms. B.B.B. and her husband Mr. C.C.C., both of advanced age. The two houses are adjacent, with part of the adjoining properties separated by a wall. Over time, there have been repeated abuses, disrespect, threats, and insults that Mr. A.A.A. has directed at both Ms. B.B.B. and her husband. The age difference is considerable, as Mr. A.A.A. is approximately 45 years old, while Ms. B.B.B. and her husband live alone, and unfortunately, have been in a delicate state of health for several years.

As document No. Y, I attach the Installation Certificate dated March 31, 2022, issued by personnel from the security company “Movistar Prosegur Alarmas, S.L.”, which certifies the installation of a grade 2 alarm system that is directly connected to the Alarm Receiving Center of the aforementioned security company. I also attach, as document No. Z, the residential contract number ***REFERENCE.1 dated

March 22, 2022.

Thirdly, I justify compliance with the applicable data protection regulations. On one hand, I provide as document No. 13, a photograph of the informative sign supplied by the security company "Movistar Prosegur Alarmas, S.L." It should be noted that this sign is the property of the aforementioned company. Both from the clauses of the contract signed by my client with this company (especially the extensive Article 17) of the general conditions, as well as the very purpose, use, and reason for the installed security/alarm system, it is evidenced that Ms. B.B.B. does not violate the regulatory framework of data protection.

As evidenced, on one hand, the use of the security system is solely and exclusively private and within a domestic scope, so according to the provisions of Article 2.2.c. of Regulation 2016/679/EU of April 27, and Article 2.2 of Organic Law 3/2018, of December 5, on the Protection of Data, the data protection regulations are not applicable in this case.

I REQUEST THIS SPANISH AGENCY FOR THE PROTECTION OF DATA: That having presented this document with the attached documents, it be admitted, and that the allegations contained in the exposition be considered to have been made in a timely manner, and by virtue of the same, agree to the filing of the present sanctioning procedure."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

SEVENTH: On the date 21/08/23, a is issued in which the filing of the proceedings is proposed as it has not been demonstrated that the facts subject to transfer constitute an administrative infringement or demonstrate an impact on the rights of the claiming party, being duly notified in a timely manner.

EIGHTH: Upon consulting the database of this agency, it is recorded that the was notified in a timely manner.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the claim dated 03/01/23 through which the following is communicated to this agency:

"(...) the claimed party is a neighbor of the claiming party and is responsible for a camera located behind the window of their home, which faces outward, being capable of capturing images of the property of the claiming party, without having authorization for this."

Images of the camera's location and cadastral plans regarding the situation of the properties of both parties are provided (Annex I).

Second. It is established that B.B.B. is the main responsible party for the installation, who does not deny having a camera system, with the installation of the same being due to various conflicts with the claimant.

Third. The installing company is ***COMPANY.1, which is connected to the alarm center of the aforementioned company.

Fourth. It is established that the cameras are primarily oriented towards the private area of the claimed party, fulfilling a deterrent function against various types of vandalism.

Fifth. The system has a sign from the installing company indicating that it is a video-monitored area, pertaining to a personal and domestic scope.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6

4/8

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the modifications made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, tax matters, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

"The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be filed."

II

In the present case, the claim dated 03/01/23 is examined, through which the presence of an image-capturing device that may affect the private area of a third party without justified cause is reported.

Article 5.1 c) GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements imposed by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause. Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, complying with the requirements of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/8

It is worth noting that even in the case of a "simulated" camera, it should preferably be oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who may feel intimidated by it under the belief that they are subject to permanent recording.

Individuals are not allowed to install image capture devices in public spaces and/or in the transit of third parties, except in cases permitted by the regulations.

The purpose of these types of devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

Cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, impacting their free transit area or private space.

III

On 17/08/23, a written submission was received from the responding party arguing the necessity of installing cameras due to various uncivil behaviors of the complainant, aspects that are supported by conviction sentences submitted to this agency.

In support of their argument, they provided Sentence X/XXX from Instruction Court No. 2

***LOCALITY.1, condemning as "responsible" for a Minor Offense of Unjust Harassment under Article 620.2 of the Penal Code; as well as various Complaints (documents 5-6) regarding various acts of vandalism.

Regarding the cameras, given the proximity of the residences, the presence of the installed cameras is permitted in light of the facts presented.

This agency has extensively expressed its rejection of acts of vandalism of various natures, so that at times the presence of cameras is the only way to document furtive acts carried out with malicious intent, whose images will serve in police or judicial proceedings to establish authorship.

Consequently, the arguments presented are deemed sufficient to consider the adopted measure proportional, in order to avoid the situation of alleged "harassment" by the neighboring property over the property of the respondent and its belongings, thus not considering the facts presented as constitutive of an administrative infraction.

In light of facts such as those described, this Agency recommends technical guidance, including from the local Security Forces and Corps, being flexible in the installation of necessary cameras to prevent any greater harm to property, belongings, or individuals against the acts described, which do not adhere to a minimum respect for the rules of good neighborliness.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/8

Any videographic medium on which images are recorded should be considered as an example of documentary evidence (Article 26 of the Penal Code), a consideration supported by the Supreme Court (e.g., STS 27/11/1995).

"...in the statements of the accused, experts, and witnesses and the documentary evidence presented in the trial (...) the recorded image (...) is sufficiently expressive of the way the action unfolds (...)" --Judgment of 10.1.1995, frequently cited, from Section 1 of the Provincial Court of Bilbao--.

IV

From the initial evidence provided, the presence of a duly approved informational sign indicating that it is a video-monitored area has not been confirmed, reminding of the necessity of such a sign if the cameras were located outside.

By means of a written document dated 17/08/23, it is certified that the cameras are installed exclusively within the scope of their private property, having a sign from the installing company indicating that it is a , therefore, as it does not affect the external scope of their property, it is not necessary to have an approved sign with layered information, with the complainant being aware of their presence.

Article 1 of the GDPR, paragraph 2, states: "This Regulation does not apply to the processing of personal data:

c) carried out by a natural person in the course of purely personal or household activities; (...).

Furthermore, no rights in this regard have been exercised by the complainant against the respondent, with the images being made available to the competent authorities under the terms set forth in the current regulations.

V

The principle of presumption of innocence prevents the imposition of an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in all cases to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of ius puniendi in its various

manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/8

The result of the tests carried out, freely assessed by the sanctioning body, must translate into an acquittal.

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence presented and by an adversarial procedure in which the parties can defend their own positions.

In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

VI

In light of the facts presented and the arguments expressed, it is considered that the installed system is in accordance with current legality, and therefore, the filing of the present procedure is proposed.

Finally, this body feels obliged to remind that the exercise of actions must be governed by the rules of good faith, avoiding the instrumentalization of the same for issues unrelated to data protection or that aim for purposes not related to the real safeguarding of personal rights, with the remaining issues being outside the competency framework of this Agency.

In view of the above, the following is issued:

Therefore, in accordance with the applicable legislation,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present procedure as no administrative infringement has been accredited within the framework of the current data protection regulations.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/8